
Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with Company A

1/3

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with "Company A"
Deliberation no. 4FR/2023 of July 5, 2023

The National Commission for Data Protection sitting in a restricted formation composed of Ms. Tine A. Larsen, President, and Messrs. Thierry Lallemand and Marc Lemmer, Commissioners;
Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016
on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;
Having regard to the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection, in particular its Article 41;
Having regard to the internal rules of the National Commission for Data Protection adopted by decision no. 3AD/2020 dated January 22, 2020, in particular its Article 10 point 2;
Having regard to the regulation of the National Commission for Data Protection relating to the investigation procedure adopted by decision no. 4AD/2020 dated January 22, 2020, in particular its Article 9;
Considering the following:

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2/3

On March 10, 2021, the National Commission for Data Protection (hereinafter: the "CNPD") received a complaint from Ms. [...] regarding the publication of her [data] [on the website] of Company X and notifying the CNPD of potential violations of the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: the "GDPR").
In the course of the investigation of the complaint, it appeared that Company B, [...] had transferred the personal data of the complainant to Company C, which in turn transferred said data to Company X. During its deliberation session on July 1, 2022, the National Commission for Data Protection sitting in plenary decided to open an investigation into Companies B, C, and A, based on Article 38 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection (hereinafter: "law of August 1, 2018") and to appoint Mr. Alain Herrmann as the investigation leader.
The said decision specified that the investigation conducted by the CNPD aimed to verify the application and compliance by the three aforementioned companies "with the provisions of the GDPR, in particular those relating to the lawfulness of processing, the obligation to inform the data subject regarding the transfer of their data to third parties, and the right to erasure, in the specific context of the transfer of the complainant's personal data to a third party company."
Company A is registered in the Luxembourg Trade and Companies Register under number [...] and has its registered office located at [...], L- [...]. It [provides electronic communications services]. 1
By email dated March 2, 2023, the investigation leader transmitted the investigation file to the National Commission for Data Protection sitting in a restricted formation (hereinafter: the "Restricted Formation"), along with a proposal for closure under Article 10.2.a) of the internal rules of the CNPD,

as he had not found any facts constituting a violation of the GDPR by Company A.

The Restricted Formation examined the case during the deliberation session on April 27, 2023.

Company A is neither the data controller nor the processor within the meaning of Article 4 points 7) and 8) of the GDPR for the processing in question in the complaint of Ms. [...] that led to the opening of the present investigation. Therefore, the Restricted Formation agrees with the proposal of the investigation leader and considers it appropriate to close the investigation in accordance with Article 10.2.a) of the aforementioned internal rules.

In light of the preceding developments, the National Commission sitting in a restricted formation, after deliberation, decides:

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to close the investigation opened during the session of July 1, 2022 of the National Commission for Data Protection concerning [...] Company A.

Belvaux, July 5, 2023.

The National Commission for Data Protection sitting in a restricted formation

Tine A. Larsen Thierry Lallemand

Marc Lemmer

President

Commissioner

Commissioner

Indication of remedies

This administrative decision may be subject to an appeal for reform within three months following its notification. This appeal must be brought before the administrative court and must necessarily be introduced through a lawyer at the Court of one of the Bar Associations.